

INTELLECTUAL PROPERTY LAW

Paper-V | 4th Semester | LL.B. (3-YDC)

Osmania University | Faculty of Law

UNIT II

International IP Regime & Treaties

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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UNIT II — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Evolution & historical development of international IP protection
- Paris Convention 1883 — Industrial Property
- Berne Convention 1886 — Literary & Artistic Works
- Madrid Agreement 1891 & Protocol 1989 — Trademarks
- Patent Cooperation Treaty (PCT) 1970
- WIPO Copyright Treaty (WCT) 1996
- WIPO Conventions and general principles of international IP
- TRIPS Agreement 1994 — framework, principles, national impact

What is NOT in This Unit

- Copyright Act 1957 in detail → Unit III
- Trade Marks Act 1999 enforcement → Unit IV
- Patents Act 1970 procedure → Unit V
- Emerging forms like AI, GRTK, IC Layouts → Unit I

★ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Role of WIPO in IPR	B	★★★★★
Madrid Agreement / Universal Copyright Convention	A	★★★★★
TRIPS Agreement — framework & impact	B	★★★★★
Evolution of international IP protection	B	★★★★★
Paris Convention — key principles	A	★★★★★
Berne Convention — key principles	A	★★★★★
PCT — patent cooperation procedure	A	★★★★
WIPO Copyright Treaty 1996	A	★★★★

Critical Numbers — Unit II

- Paris Convention — 1883 | Revised: Stockholm 1967
- Berne Convention — 1886 | Revised: Paris 1971
- Madrid Agreement — 1891 | Protocol: 1989
- PCT — 1970 | Administered by WIPO
- WIPO Established — 1967 (Convention) | UN Agency since 1974
- WIPO Copyright Treaty (WCT) — 1996 | 'Internet Treaties'
- WPPT (Performances & Phonograms Treaty) — 1996
- TRIPS Agreement — 1994 | Annex 1C of WTO Agreement
- India joined Paris Convention — 1998 | Berne — 1928

- TRIPS minimum copyright term: Life + 50 years
- TRIPS minimum patent term: 20 years
- TRIPS minimum TM term: 7 years (renewable)



PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. Each answer: ~200–250 words. Time: 5–7 min each.

A1. Paris Convention, 1883 (Industrial Property) ★★★★★☆

Definition: The Paris Convention for the Protection of Industrial Property (1883) is the foundational international treaty for IP protection. It covers patents, trademarks, industrial designs, utility models, and geographical indications. Currently administered by WIPO; 179 member states.

Key Principles:

- National Treatment (Art. 2): Foreign nationals of member states receive same IP protection as nationals
- Right of Priority (Art. 4): Filing in one member state gives 12 months (patents/designs) or 6 months (trademarks) to file in other states with same priority date
- Independence of Patents (Art. 4bis): Patents in different countries are independent — grant/refusal in one doesn't affect others
- Common Rules: Telle Quelle rule — trademark registered in home country must be accepted as-is in other countries
- Compulsory licensing allowed if patent not worked within 3 years of grant (Art. 5A)

📌 **THREE PILLARS: (1) National Treatment, (2) Right of Priority, (3) Common Rules. Learn these for exam — Paris Convention questions always test these three.**

📌 Example: An Indian inventor files a patent in India. She has 12 months to file in USA, Germany, Japan with the same Indian filing date as priority. Without Paris Convention, she'd lose novelty.

📌 *Eli Lilly v. Canada (NAFTA Arbitration, 2017) — illustrated how national treatment under Paris Convention binds member states to consistent IP standards.*

💡 **TIP: Remember: Paris = 1883 = Industrial Property = Patents + TM + Designs. Berne = 1886 = Literary/Artistic = Copyright. Three years apart, different subject matter.**

A2. Berne Convention, 1886 (Literary & Artistic Works) ★★★★★☆

Definition: The Berne Convention for the Protection of Literary and Artistic Works (1886) is the primary international framework for copyright protection. It establishes minimum standards of protection binding on all member states. Currently 181 members; administered by WIPO.

Key Principles:

- National Treatment: Works of foreign nationals protected like works of own nationals
- Automatic Protection: No registration, no formalities — copyright arises automatically on creation
- Minimum Term: Life of author + 50 years (most countries grant more, e.g., India gives Life + 60)
- Moral Rights (Art. 6bis): Author's right of attribution and integrity — cannot be waived or transferred
- Minimum Standards: Reproduction right, translation right, adaptation right
- Rule of the Shorter Term: Foreign works protected for shorter of home country term or protecting country term

📌 **BERNE'S GOLDEN RULE: No formalities. Copyright is automatic from creation. No registration, no notice, no © symbol required (unlike older US law). This is the Berne principle India has adopted.**

📌 Example: A French novelist writes a book. In India, it is automatically protected under Indian

Copyright Act (which implements Berne) without any registration in India.

⚖️ *Bridgeman Art Library v. Corel Corp (1999, USA)* — applied Berne principle that exact photographic reproductions of public domain works do not attract fresh copyright (no originality).

💡 *TIP: Berne = 3 Autos: Automatic protection, Automatic term (life+50), Automatic moral rights. No registration needed!*

A3. Madrid Agreement (1891) & Madrid Protocol (1989) ★★★★★

Definition: The Madrid System for international trademark registration consists of: (1) Madrid Agreement (1891) and (2) Madrid Protocol (1989). Together, they allow a trademark owner to register their mark in multiple countries through a single application filed with WIPO. India acceded to the Madrid Protocol in 2013.

Key Features:

- ▶ Single application in one language (English/French/Spanish) → protection in up to 130+ countries
- ▶ One set of fees in Swiss Francs paid to WIPO (instead of separate national fees)
- ▶ 'Central attack' rule: If home registration cancelled within 5 years, all international registrations fail
- ▶ Protection term: 10 years, renewable for 10 years at a time
- ▶ Each designated country has 12–18 months to refuse on national grounds
- ▶ Madrid Protocol improved on Agreement: accepts applications pending (not just registered) in home country

Difference: Agreement vs Protocol

Feature	Madrid Agreement (1891)	Madrid Protocol (1989)
Basis	Home registration required	Home application sufficient
Language	French only	English/French/Spanish
Refusal period	12 months	18 months
India membership	Not a member	Joined 2013

📌 Example: Tata Motors wants to protect 'Tata' trademark in 50 countries. Instead of filing 50 separate applications, it files ONE Madrid application with WIPO — saving time and cost.

⚖️ *Bacardi & Company v. Bacard Ltd (EUIPO)* — demonstrated how Madrid System simplifies multi-jurisdictional TM enforcement.

💡 *TIP: Madrid = Multi-country TM registration. '1891+1989' = Agreement + Protocol. India joined Protocol (not Agreement) in 2013. Exam often asks the year India joined — it's 2013.*

A4. Patent Cooperation Treaty (PCT), 1970 ★★★★★☆☆

Definition: The Patent Cooperation Treaty (PCT, 1970) is an international treaty administered by WIPO that allows inventors to file a single 'international application' to seek patent protection in multiple countries simultaneously. It does not grant an 'international patent' — each country still decides grant independently.

Key Features:

- Single international application filed with a 'Receiving Office' (e.g., Indian Patent Office)
- Application automatically designates all 157 PCT member states

- International Search Report (ISR): Prior art search conducted by International Searching Authority
- International Preliminary Examination (IPE): Optional; gives patentability opinion before national phase
- Applicant gets 30 months from priority date to enter 'national phase' in chosen countries
- Key benefit: 30 months to decide which countries to pursue — huge commercial planning time

PCT TIMELINE: File → International Search (16 months) → Enter National Phase (30 months from priority). PCT does NOT grant patents — it STREAMLINES multi-country filing.

PCT Phases:

Phase	Action	Timeline
International	File application + ISR + IPN	0–18 months
Chapter I	International search report issued	By 16th month
Chapter II	Optional preliminary examination	By 28th month
National Phase	Enter each country's patent office	By 30th month

 Example: A Hyderabad biotech startup invents a novel drug compound. It files ONE PCT application. 30 months later, it decides to pursue USA, EU, and Japan — entering those national patent offices after better funding secured.

⚖️ No specific case, but Indian Patent Office processes ~3000 PCT national phase entries per year — demonstrating practical importance for Indian inventors.

 **TIP: PCT = 'Buy Time' treaty. 30 months to decide. Does NOT grant patents. ISR = prior art check. India is a member. File with Indian Patent Office as Receiving Office.**

A5. WIPO Copyright Treaty (WCT), 1996 ★★★★★

Definition: The WIPO Copyright Treaty (WCT) 1996 is a special agreement under the Berne Convention designed to address copyright challenges in the digital environment. Along with the WIPO Performances and Phonograms Treaty (WPPT 1996), it is called the 'WIPO Internet Treaties'. Currently 115 member states.

Key Provisions:

- Computer programmes protected as literary works (Art. 4)
- Databases protected if original in selection/arrangement (Art. 5)
- Right of distribution and right of rental — authors have exclusive rights
- Right of Communication to the Public (Art. 8): Making works available online is covered
- Anti-circumvention provisions (Art. 11): Prohibits circumventing technological protection measures (DRM)
- Rights Management Information (Art. 12): Tampering with digital rights info is prohibited

KEY ADDITIONS OVER BERNE: WCT adds (1) Online communication right, (2) Anti-DRM circumvention rules, (3) Software & databases expressly covered. These three make Berne fit for the internet age.

 Example: Netflix uses DRM (Digital Rights Management) encryption on its content. Under WCT Art. 11, circumventing this DRM (e.g., using software to remove encryption) is illegal even if the underlying content viewing would be fair use.

⚖️ Capitol Records v. ReDigi (USA, 2013) — applied WCT-inspired digital distribution principles; resale of digital music files held to infringe distribution right.

💡 *TIP: WCT 1996 = Berne for the Internet. Three new rights: Communication to public, Anti-DRM, Rights Management Information. India incorporated WCT principles into Copyright (Amendment) Act 2012.*

A6. Universal Copyright Convention (UCC) ★★☆☆☆

Definition: The Universal Copyright Convention (UCC) 1952 is an alternative international copyright framework administered by UNESCO. It was created to accommodate countries (especially the USA at the time) that could not immediately join the Berne Convention due to stricter formality requirements. India is a member of both UCC and Berne.

Key Features:

- ▶ Member states must provide 'adequate and effective' copyright protection
- ▶ Minimum term: Life of author + 25 years (lower than Berne's Life + 50)
- ▶ Formality allowed: © symbol, name, year of publication satisfies all formalities
- ▶ National treatment principle applies — same as Berne
- ▶ Does NOT apply between Berne members — Berne governs if both parties are Berne members
- ▶ USA abandoned UCC and joined Berne in 1989 — UCC has become less relevant since

🟡 **UCC vs BERNE:** UCC is the 'softer' version — allows formalities (© notice), lower minimum term, administered by UNESCO. Berne is stricter, better protection, administered by WIPO. Where both apply, Berne prevails.

📌 **Example:** Before USA joined Berne (1989), US copyright relied on UCC for international protection. After 1989, Berne governs US-India copyright relations — UCC now dormant between them.

💡 *TIP: Exam trap: UCC is NOT the primary treaty — it's supplementary. UCC question often appears in Part A. Key number: 1952 (UCC) vs 1886 (Berne). © symbol is UCC's formality shortcut.*

PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. Each answer: ~600–750 words. Time: 20–25 min each.

B1. Role of WIPO in Relation to Intellectual Property Rights

Introduction

The World Intellectual Property Organization (WIPO) is the premier global institution for intellectual property governance. Established by the WIPO Convention of 1967 and a specialised agency of the United Nations since 1974, WIPO administers 26 international treaties, serves 193 member states, and provides the infrastructure for the global IP system. Its role has evolved from a mere treaty administrator to a comprehensive platform for IP policy, dispute resolution, capacity building, and digital innovation governance.

1. Historical Background

- 1883: United International Bureaux for Protection of Intellectual Property (BIRPI) formed to administer Paris + Berne Conventions
- 1967: WIPO Convention signed at Stockholm — BIRPI renamed WIPO
- 1974: WIPO becomes specialised agency of the United Nations
- 1996: WIPO-WTO Agreement — cooperation on TRIPS implementation
- Today: WIPO administers 26 treaties including PCT, Madrid System, Hague System

2. Administrative Functions — Treaty Administration

- Administers the Paris Convention (Industrial Property), Berne Convention (Copyright), PCT, Madrid System, Hague System, Lisbon System
- Processes international applications: 278,100 PCT applications (2022); 66,000 Madrid TM applications
- WIPO Arbitration and Mediation Center: handles domain name disputes under UDRP (Uniform Domain Name Dispute Resolution Policy)

 **WIPO'S FIVE GLOBAL REGISTRATION SYSTEMS: (1) PCT — Patents, (2) Madrid System — Trademarks, (3) Hague System — Industrial Designs, (4) Lisbon System — GI, (5) Vienna Classification — Figurative TM elements.**

3. Normative/Lawmaking Role

- WIPO develops new international IP standards and treaties
- Internet Treaties 1996: WCT and WPPT developed under WIPO to address digital copyright
- Marrakesh Treaty 2013 (WIPO): Facilitates access to published works for visually impaired persons
- Beijing Treaty 2012 (WIPO): Protects audiovisual performers' rights
- Ongoing: WIPO IGC negotiations on GRTK and folklore protection treaty

4. Developmental Role — Capacity Building

- WIPO Development Agenda (2007): 45 recommendations to integrate development into all WIPO activities
- Provides technical assistance to developing countries for implementing IP laws
- WIPO Academy: Online and in-person IP education for judges, examiners, lawyers worldwide
- WIPO GREEN: Platform for transfer of environmentally friendly technologies to developing nations

- IP-STARs: Global IP ranking system that incentivises quality IP administration

📌 Example: India's IP Office (CGPDTM) receives WIPO technical assistance for patent examination quality improvement, accelerated patent examination programmes, and digital filing infrastructure.

5. Dispute Resolution

- WIPO Arbitration and Mediation Center established 1994
- Primary body for domain name disputes — UDRP (over 60,000 cases resolved)
- Offers arbitration, mediation, and expert determination for IP disputes

⚖️ *Tata Sons v. Tata Consultancy Services (WIPO UDRP D2017-0352)* — resolved domain name dispute under UDRP.

⚖️ *Rolex SA v. Rolex.com (WIPO Case)* — classic UDRP cybersquatting case resolved via WIPO.

6. WIPO and the TRIPS Agreement

While TRIPS is administered by the WTO (not WIPO), WIPO and WTO entered into a cooperation agreement in 1996. Under this agreement:

- WIPO provides technical assistance to developing countries on TRIPS implementation
- WIPO's IP statistics inform WTO dispute panels
- TRIPS minimum standards are built upon WIPO conventions (Paris, Berne incorporated by reference)

📌 **RELATIONSHIP:** WIPO = IP specialist body (creates norms, administers systems). WTO/TRIPS = trade enforcement body (minimum standards, dispute settlement). Together they form the dual pillar of global IP governance.

7. WIPO in the Digital Age

- WIPO Re:Search: Platform sharing IP assets for neglected tropical disease research
- WIPO PROOF: Blockchain-based timestamping service to establish IP creation date
- WIPO AI Policy: Developing guidelines on AI inventorship, AI-generated works
- Patent Landscape Reports: Free global patent databases (PATENTSCOPE — 100M+ documents)

Conclusion

WIPO occupies an irreplaceable role in the global IP architecture. It is simultaneously a treaty administrator, law-maker, technical assistance provider, dispute resolver, and innovation platform. For India — a nation with immense creative talent, biodiversity wealth, and a growing innovation economy — WIPO's frameworks provide the international infrastructure upon which domestic IP development rests. As IP increasingly defines competitive advantage in the 21st century, WIPO's relevance will only grow — particularly in addressing the governance challenges of AI, biotechnology, and the digital commons.

📌 **CONSTITUTIONAL LINK:** India's IP law obligations under WIPO treaties are given effect through domestic statutes — reinforcing Article 51(c) of the Constitution directing India to 'foster respect for international law and treaty obligations'.

B2. The TRIPS Agreement 1994 — Framework, Principles & National Impact on India

Introduction

The Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS), adopted in 1994 as Annex 1C of the Agreement Establishing the World Trade Organization (WTO), represents the most

comprehensive and enforceable multilateral IP agreement in history. Unlike earlier conventions (Paris, Berne) which lacked enforcement mechanisms, TRIPS binds all 164 WTO members to minimum IP standards backed by the WTO's Dispute Settlement Mechanism — making IP compliance a prerequisite of international trade.

1. Background & Genesis

- Pre-TRIPS era: Paris (1883) and Berne (1886) set standards but had NO enforcement mechanism
- 1980s: Developed countries (USA, EU) frustrated by IP piracy in developing nations
- TRIPS negotiated in Uruguay Round (1986–1994) of GATT — linked IP to trade for first time
- Came into force: 1 January 1995 for developed countries; 2000 for developing; 2006 for LDCs
- India: TRIPS compliant from 2005 (product patents for pharmaceuticals introduced)

2. Structure of TRIPS Agreement

Part	Content
Part I (Arts. 1–8)	General provisions — objectives, principles, flexibilities
Part II (Arts. 9–40)	Minimum standards for each IP category
Part III (Arts. 41–61)	Enforcement obligations
Part IV (Arts. 62–67)	Acquisition and maintenance of IP rights
Part V (Arts. 68–74)	Dispute prevention and settlement
Part VI (Arts. 65–67)	Transitional arrangements

3. Key Principles of TRIPS

- National Treatment (Art. 3): Foreign nationals of WTO members get same IP protection as own nationals
- Most-Favoured Nation (Art. 4): Any IP advantage given to one WTO member must be given to ALL (new feature — not in Paris/Berne)
- Minimum Standards (Art. 1): TRIPS sets floors, not ceilings — countries can give MORE protection
- Exhaustion of Rights (Art. 6): Each country determines its own doctrine of exhaustion (international, national, regional)

 **TRIPS vs PARIS/BERNE: TRIPS adds TWO critical new principles — (1) MFN (Most Favoured Nation) — totally new; (2) Enforceable dispute settlement through WTO. These were missing from older treaties.**

4. Minimum Standards Set by TRIPS

IP Right	TRIPS Minimum Standard
Patents	20 years from filing All fields of technology No discrimination
Copyright	Life + 50 years No formalities Incorporates Berne
Trademarks	7 years from registration Renewable indefinitely
GI	Special protection for wines & spirits; basic protection for others
Industrial Designs	10 years Independent or textile designs
Undisclosed Info	Trade secrets protected if secret, valuable, reasonable steps taken

5. TRIPS Flexibilities — Public Interest Safeguards

- Art. 8: Members may adopt measures to protect public health, nutrition, socio-economic development
- Art. 27.2/27.3: Exclude from patentability: diagnostic methods, therapeutic methods, plants/animals, essentially biological processes
- Art. 30: Limited exceptions to patent rights (research exemption, Bolar exemption)
- Art. 31: Compulsory licensing — government can license patent without owner's consent (public health, emergency)
- Doha Declaration 2001: Reaffirmed TRIPS flexibilities for public health — TRIPS does not prevent access to medicines

■ **INDIA'S USE OF TRIPS FLEXIBILITIES: Section 3(d) Patents Act (Novartis case), compulsory licensing for Nexavar (cancer drug, 2012), Bolar exception — all use TRIPS Art. 30/31 flexibilities to balance innovation and public health.**

6. National Impact on India

- 2005 Patent (Amendment) Act: India introduced product patents for pharmaceuticals under TRIPS obligation
- Section 3(d): India's unique provision preventing 'evergreening' — withstands TRIPS scrutiny (Novartis 2013)
- Copyright (Amendment) Act 2012: Incorporated TRIPS/WCT requirements (digital rights, DRM)
- Trade Marks Act 1999, GI Act 1999, Designs Act 2000 — all enacted to comply with TRIPS
- Pharmaceutical industry: India became 'pharmacy of the world' using TRIPS flexibilities for generic drugs

⚖️ *Novartis AG v. Union of India (2013) SC — India's rejection of Gleevec patent under Section 3(d) upheld; SC held it was consistent with TRIPS Art. 27 and India's sovereign right to define patentability.*

⚖️ *Bayer Corporation v. Union of India (2014) SC — Compulsory licence for Nexavar (cancer drug) upheld under Patents Act Section 84, consistent with TRIPS Art. 31.*

7. Enforcement under TRIPS (Part III)

- Civil remedies mandatory: injunctions, damages, disposal of infringing goods (Arts. 44–46)
- Criminal penalties mandatory for commercial-scale trademark counterfeiting and copyright piracy (Art. 61)
- Border measures: customs seizure of counterfeit goods (Arts. 51–60)
- WTO Dispute Settlement: TRIPS violations adjudicated by WTO panels — binding on members

⚖️ *US v. India (WTO DS50 — Patent Protection for Pharmaceutical Products, 1997) — USA challenged India's mailbox patent system under TRIPS; India ultimately amended Patents Act in compliance.*

Conclusion

TRIPS transformed international IP from a courtesy-based system to an enforceable trade obligation. Its genius lies in its hybrid design: universal minimum standards + national flexibility for public interest. For India, TRIPS has been both a constraint (requiring robust IP protection) and an opportunity (flexibilities enabling generic pharmaceutical manufacturing and access to medicines). The constitutional basis for India's TRIPS compliance rests in Article 51 (international obligations) and Articles 19, 300A (property rights), while the Directive Principles (Articles 39, 47) justify the flexibilities India deploys to protect public health.

🏆 PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any TWO. Use strict IRAC format. Time: 15 min each.

C1. Problem: Generic Drug Manufacturer & TRIPS Compulsory Licensing

(Hypothetical based on Unit II themes: A pharmaceutical company holds a patent on a life-saving cancer drug priced at Rs. 2.8 lakhs per month. A generic manufacturer wants to produce and sell it cheaply. Can the government or generic company compel access? Advise.)

I — ISSUE

Whether a compulsory licence can be granted under the TRIPS Agreement and Indian law to enable manufacture of a patented life-saving drug at an affordable price, overriding the patent holder's exclusive rights.

R — RULE

The following legal provisions govern:

1. TRIPS Agreement, Article 31: A member state may allow use of a patent without the patent holder's authorisation (compulsory licence) if: (a) negotiations with patent holder failed; (b) used mainly for domestic market supply; (c) adequate remuneration paid to patent holder.
2. TRIPS Article 31bis (2017 amendment): Allows export of compulsory-licensed medicines to countries lacking manufacturing capacity.
3. Doha Declaration on TRIPS and Public Health (2001): Reaffirmed that TRIPS must not prevent members from taking measures to protect public health. Each member has right to grant compulsory licences and determine grounds.
4. Patents Act 1970, Section 84: Compulsory licence may be granted after 3 years of patent grant if: (a) reasonable requirements of public not satisfied; (b) not available at reasonably affordable price; (c) not worked in India.
5. Section 92 Patents Act: Government can issue compulsory licence in national emergency, extreme urgency, or public non-commercial use — without prior negotiation.

 **KEY RULE:** TRIPS Art. 31 + Patents Act Sec. 84/92 = Compulsory licensing is **LEGAL** under international and Indian law when public health needs are not met by the patent holder.

A — APPLICATION

Applying the rules to the facts:

- The drug is a life-saving cancer treatment — clearly a public health concern
- Price of Rs. 2.8 lakhs/month makes it unavailable to the vast majority of Indians — 'not available at reasonably affordable price' (Sec. 84(1)(b))
- If 3 years have elapsed since patent grant → generic manufacturer can apply for compulsory licence under Section 84

- Government can invoke Section 92 directly if this is a public health emergency — no prior negotiation needed
- TRIPS Art. 31 is satisfied: India's domestic law implements all Article 31 conditions
- Doha Declaration affirms: TRIPS 'can and should be interpreted...to promote access to medicines for all'

🏴󠁧󠁢󠁥󠁮󠁧󠁿 *Bayer Corporation v. Natco Pharma / Union of India (IPAB 2012, upheld by SC 2014)* — India granted its FIRST compulsory licence for Nexavar (kidney cancer drug) to Natco Pharma. Bayer's Rs. 2.8 lakh/month price vs Natco's Rs. 8,880/month. Fully consistent with TRIPS and Patents Act Section 84.

C — CONCLUSION

YES — A compulsory licence CAN be granted.

The generic manufacturer should apply to the Controller of Patents under Section 84 of the Patents Act, 1970. Given the extreme price and life-saving nature of the drug, the grounds under Section 84(1)(b) are clearly made out. This is consistent with TRIPS Article 31 and the Doha Declaration. The patent holder remains entitled to 'adequate remuneration' (royalty) to be determined by the Controller.

🟡 **FINAL ANSWER:** Compulsory licence GRANTED under Patents Act Sec. 84 + TRIPS Art. 31. India's sovereign right affirmed by Doha Declaration. Precedent: Nexavar (Bayer v. Natco, 2012).

C2. Problem: Cross-Border Copyright — Does Berne Convention Protect Foreign Author in India?

(Hypothetical: 'X', a British novelist, publishes a book in the UK. 'Y' in India reproduces the entire book without permission and sells copies commercially. X wants to sue in India. Can X get copyright protection in India even though X has no Indian copyright registration?)

I — ISSUE

Whether 'X', a British national, can claim copyright protection in India for a work published in the UK, without any registration in India, and whether 'Y's unauthorised reproduction amounts to copyright infringement under Indian law.

R — RULE

The following rules apply:

1. Berne Convention, Article 5(2): Protection is NOT conditional on compliance with any formality. Copyright subsists automatically without registration.
2. Berne Convention, Article 3: Protection extends to authors who are nationals of or have published works in a Berne member country. UK is a Berne member. India is a Berne member.
3. Berne Convention, Article 5(1): National Treatment — foreign authors receive same

protection as Indian nationals in India.

4. Copyright Act 1957, Section 40: Works of authors who are citizens of or domiciled in countries notified by Indian government receive protection equal to Indian works. UK is a notified country.

5. Copyright Act 1957, Section 14: Reproduction right is an exclusive right of the copyright owner. Unauthorised reproduction = infringement.

■ **BERNE'S CORE RULE: No formalities + National Treatment = X has automatic copyright in India from the moment of UK publication. No Indian registration needed.**

A — APPLICATION

Applying the rules:

- UK and India are both Berne Convention members — Berne automatically applies
- X published in the UK — X's work is protected in ALL Berne member states including India from date of publication
- Berne's 'no formality' rule: X does NOT need to register in India — copyright exists automatically
- National Treatment: X's rights in India are the same as any Indian author's rights — full protection under Copyright Act 1957
- Y reproduced the ENTIRE book commercially — this is a clear reproduction right infringement under Section 14 Copyright Act
- No fair dealing defence available — commercial reproduction of an entire work for commercial sale cannot be fair dealing

✚ *R.G. Anand v. M/s Delux Films (1978 SC) — established that copyright infringement requires substantial copying; here reproduction is complete — infringement is absolute.*

C — CONCLUSION

YES — X can claim full copyright protection in India.

Under the Berne Convention (Arts. 3, 5) and Copyright Act 1957 (Section 40), X automatically has copyright in India without any formality. Y's commercial reproduction of the entire book is a straightforward infringement of X's reproduction right under Section 14. X can sue Y in India for injunction, damages, and delivery of infringing copies under Sections 55 and 58 of the Copyright Act.

■ **FINAL ANSWER: Berne Convention + Section 40 Copyright Act = X has automatic, registration-free copyright in India. Y's reproduction = INFRINGEMENT. X can sue for damages + injunction.**

⚡ QUICK REVISION SHEET — UNIT II

1 2 3 4 Treaty Timeline — Master Table

Treaty	Year	Subject Matter	Admin Body	Key Principle
Paris Convention	1883	Industrial Property (Patents, TM, Designs)	WIPO	National Treatment + Right of Priority
Berne Convention	1886	Literary & Artistic Works (Copyright)	WIPO	Automatic protection, Life+50, Moral rights
Madrid Agreement	1891	Trademark registration	WIPO	Multi-country TM via one application
PCT	1970	Patents (multi-country filing)	WIPO	30-month national phase delay
WIPO Established	1967/74	All IP	UN/WIPO	Global IP governance
Madrid Protocol	1989	Trademark (improved)	WIPO	Application (not registration) as basis
TRIPS	1994	All IP + Trade enforcement	WTO	MFN + National Treatment + Enforcement
WCT / WPPT	1996	Digital Copyright	WIPO	Anti-DRM, online communication right
Doha Declaration	2001	TRIPS & Public Health	WTO	Compulsory licensing flexibility
Marrakesh Treaty	2013	Copyright for visually impaired	WIPO	Access exceptions for disability
India joins Madrid Protocol	2013	Trademarks	WIPO	Single filing for India TM in 130+ countries

⚖️ Top Cases — One-Liner

- Novartis v. UOI (2013 SC): TRIPS-compliant Section 3(d) rejects Gleevec patent — public health wins
- Bayer v. Natco/UOI (2012/2014): India's first compulsory licence — TRIPS Art.31 flexibilities used
- US v. India (WTO DS50, 1997): TRIPS dispute — India amended Patents Act to add product patents by 2005
- R.G. Anand v. Delux Films (1978 SC): Copyright infringement standard — applied in cross-border cases

🧠 Memory Mnemonics

■ TREATIES IN ORDER: 'Paris Before Berne Meets PCT With TRIPS' = Paris(1883), Berne(1886), Madrid(1891), PCT(1970), WIPO(1974), TRIPS(1994), WCT(1996)

■ PARIS CONVENTION PILLARS: 'NRC' = National Treatment, Right of Priority, Common Rules (Telle Quelle)

■ BERNE 3 AUTOS: Automatic protection, Automatic term (Life+50), Automatic moral rights — No formalities

■ TRIPS PRINCIPLES: 'MNM+E' = MFN, National Treatment, Minimum Standards, Enforcement

■ WIPO SYSTEMS (5): PCT(Patents), Madrid(TM), Hague(Designs), Lisbon(GI), Vienna(TM Classification)

■ COMPULSORY LICENCE CONDITIONS (TRIPS Art.31): 'PNRD' = Prior negotiation, National emergency exception, Remuneration paid, Domestic supply primarily

△ Exam TRAP Questions

- ▶ TRAP: 'Does WIPO administer TRIPS?' → NO. TRIPS is administered by WTO. WIPO administers Paris, Berne, PCT, Madrid, etc.
- ▶ TRAP: 'Does Berne require © symbol for protection?' → NO. Berne prohibits formalities. © is a UCC (1952) formality.
- ▶ TRAP: 'PCT grants an international patent' → NO. PCT streamlines filing. Each country grants its own patent.
- ▶ TRAP: 'TRIPS is the strongest IP treaty because it covers the most countries' → Partially wrong. TRIPS is strongest because it has ENFORCEMENT via WTO DSM.
- ▶ TRAP: 'India joined Madrid Agreement' → NO. India joined Madrid PROTOCOL (1989) in 2013, not the Agreement (1891).
- ▶ TRAP: 'TRIPS minimum copyright term is Life + 60' → NO. TRIPS minimum is Life + 50. India gives MORE (Life+60) using its right to grant higher protection.
- ▶ TRAP: 'Compulsory licence = free use of patent' → NO. Adequate remuneration must be paid to patent holder (TRIPS Art. 31(h)).

Star Ratings Summary — Unit II

Topic	Part	Rating
Role of WIPO in IPR	B	★★★★★
Madrid Agreement/Protocol	A	★★★★★
TRIPS Agreement — framework & impact	B	★★★★★
Paris Convention	A	★★★★★
Berne Convention	A	★★★★★
Compulsory Licensing (TRIPS) Problem	C	★★★★★
Cross-Border Copyright (Berne) Problem	C	★★★★★
WCT 1996 / Internet Treaties	A	★★★★

PCT 1970	A	★ ★ ★
Universal Copyright Convention	A	★ ★ ★

— END OF UNIT II —

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